

STATE OF NEW YORK

6721--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 11, 2025

Introduced by M. of A. GRIFFIN, SOLAGES, STERN, BERGER, PHEFFER AMATO, McDONALD, STECK, SCHIAVONI, KAY, McMAHON, BUTTENSCHON, BRAUNSTEIN, O'PHARROW, SAYEGH, RAJKUMAR, ROZIC, CONRAD, SHIMSKY, LUNSFORD, RAMOS, CLARK, KASSAY, YEGER, WILLIAMS, HEVESI, LAVINE, BARRETT, TAPIA, SIMON, COLTON, HOOKS, WIEDER -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to providing confidentiality for communications arising out of law enforcement peer support counseling

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Lieutenant Joseph Banish mental health act".

3 § 2. The executive law is amended by adding a new section 837-z to
4 read as follows:

5 § 837-z. Law enforcement peer support program. 1. Definitions. As
6 used in this section the following terms shall have the following mean-
7 ings:

8 (a) "Law enforcement agency" means any department, division, agency,
9 board, commission, or public authority of the state or any subdivision
10 thereof that employs police officers.

11 (b) "Police officer" means a police officer as defined in section 1.20
12 of the criminal procedure law.

13 (c) "Peer support communication" includes:

14 (i) an oral or written communication made in the course of a peer
15 support counseling session;

16 (ii) a note or report arising out of a peer support counseling
17 session; or

18 (iii) a record of a peer support counseling session.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD06860-04-5

1 (d) "Peer support counseling program" means a program provided by a
2 law enforcement agency that provides counseling services from a peer
3 support specialist to a police officer of the law enforcement agency.

4 (e) "Peer support counseling session" means any counseling formally
5 provided through a peer support counseling program between a peer
6 support specialist and one or more police officers.

7 (f) "Peer support participant" means a police officer who receives
8 counseling services from a peer support specialist.

9 (g) "Peer support specialist" means a police officer who:

10 (i) has received training in peer support counseling, including
11 providing emotional and moral support to police officers who have been
12 involved in or exposed to an emotionally traumatic experience in the
13 course of employment; and

14 (ii) is designated by a law enforcement agency to provide the services
15 described in subparagraph (i) of this paragraph.

16 2. Confidentiality. Except as provided in subdivision three of this
17 section, a peer support specialist or peer support participant shall not
18 disclose the contents of a peer support communication to an individual
19 who was not a party to such peer support communication.

20 3. Exceptions.

21 (a) A peer support specialist or peer support participant may disclose
22 the contents of a peer support communication that contains or reveals:

23 (i) a specific threat of suicide, an expression of suicidal ideation,
24 or engagement in self-harm;

25 (ii) a threat of bodily harm or death; or

26 (iii) information relating to the abuse or neglect of a child.

27 (b) A peer support specialist or peer support participant shall
28 disclose the contents of a peer support communication:

29 (i) that is required by law to be reported;

30 (ii) that contains an admission of criminal conduct; or

31 (iii) as ordered by a court of competent jurisdiction.

32 (c) A peer support participant may at any time give their consent to a
33 peer support specialist or peer support participant to disclose the
34 contents of their own peer support communication.

35 4. Written notice. Before the initial peer support counseling session
36 of a peer support participant, a peer support specialist shall inform
37 the peer support participant in writing of the confidentiality require-
38 ment under subdivision two of this section and the exceptions to that
39 requirement under subdivision three of this section.

40 5. Rules and regulations. The division shall promulgate rules and
41 regulations necessary to effectuate this section and shall be empowered
42 to identify minimum certifications required of trained members, approved
43 training courses, record keeping requirements, and retraining require-
44 ments.

45 § 3. This act shall take effect on the ninetieth day after it shall
46 have become a law. Effective immediately, the addition, amendment
47 and/or repeal of any rule or regulation necessary for the implementation
48 of this act on its effective date are authorized to be made and
49 completed on or before such effective date.